

		remains at issue are the requested exams with neuropsychologist Dr. Thaler and neuro-opthamologist Dr. Shabo, and one more [either neurosurgeon Dr. Lederhaus, or neurologist Dr. Ludwig]. Counsel will need to address at the time of the hearing which exam has occurred. The Court will then GRANT the Motion as to the other three IMEs. Counsel should be prepared to set specific dates for those exams at the time of the hearing. Defendant's request for sanctions against Plaintiff is also GRANTED but only as to the \$1,200 no-show fee which plaintiff concedes was incurred because she "inadvertently missed the original appointment." (ROA 77, Doulatshahi Decl., ¶ 3). This no-show fee should not be borne by the faultless defendant. The request for further sanctions is denied because defendant was required to seek court approval before requesting more than one IME (CCP section 2032.310(a)), and thus this motion could well have been necessary in any case and plaintiff was not required to accede to three additional IME's just because defendant requested them. Although the court concurs with defendant that plaintiff's counsel should have done a better job conferring with defense counsel, the court finds that it is not just to impose additional sanctions on the plaintiff (who must undergo four separate IME's) because defendant, which did not have a court order, sought to engage in discovery that required one. Counsel for Defendant is to give notice of this ruling.
7	30-2023-01319862 Lopez vs. Castonguay	Before the court is the continued hearing on two discovery motions filed by plaintiff Tony Lopez against defendant New Prime, Inc. The first is a motion to compel a further production of documents and the second is a motion to compel further answers to form interrogatories. Following the 2/10/25 hearing, the parties each submitted supplemental briefs. After consideration of the supplemental briefs, the first motion is DENIED and the second motion is GRANTED. Also on calendar is a Motion to Reopen Discovery filed by defendants New Prime, Inc. and Christopher Canstonguay. That motion is MOOT in light of the court's 3/19/25 Minute Order and is therefore DENIED. <u>I. MOTION TO COMPEL PRODUCTION</u>

		The instant motion seeks further responses to defendant's supplemental responses to request for production numbers 25 and 26. In these two requests, the plaintiff seeks production of sub-rosa videos depicting the plaintiff, as well as related reports and other writings. Defendant asserts that these videos are work product and that the defense intends to offer them to impeach plaintiff's testimony at trial. CCP § 2018.020 sets forth the state's policy regarding an attorney's work product, which is to: "(a) Preserve the rights of attorneys to prepare cases for trial with that degree of privacy necessary to encourage them to prepare their cases thoroughly and to investigate not only the favorable but the unfavorable aspects of those cases. (b) Prevent attorneys from taking undue advantage of their adversary's industry and efforts." CCP § 2018.030 sets the level of protection, providing: "(a) A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances. (b) The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." (See <i>Coito v. Superior Court</i> (2012) 54 Cal.4th 480, 499 - confirming that, pursuant to section 2018.030, subdivision (b), "A party seeking disclosure has the burden of establishing that denial of disclosure will unfairly prejudice the party in preparing its claim or defense or will result in an injustice".) Plaintiff argues that he will be prejudiced if not able to view the sub-rosa videos because he needs to "evaluate the authenticity of the evidence." (Motion at 10:11) Plaintiff suggests, for example, that the video may be manipulated to depict him walking up a hill when, in fact, the ground was flat. However, plaintiff has been provided the dates of the sub rosa videos and there is no evidence suggesting he would not be able to testify as to what is depicted in the videos. Plaintiff also claims it would be unfairly prejudicial for him to be surprised with the video at trial. However, the sub rosa footage is of Plaintiff regarding his personal injury claims. Presumably, Plaintiff is the most knowledgeable about his medical condition and what activities he was, or was not, able to perform in light of his alleged injuries. Thus, he would not be
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		“surprised” or prejudiced by being shown footage of his own conduct on particular days. On the other hand, if the videos were ordered produced, the time and effort spent by the defendant in obtaining the videos would essentially be rendered valueless. Rather than the defense (which obtained the videos) using them for rebuttal, the plaintiff (who did not obtain the videos) would be able to use them to structure testimony around any rebuttal. This would discourage attorneys from investigating their cases. Production of the videos would be counter to the expressed intent of the Legislature to “encourage [attorneys] to prepare their cases thoroughly and to investigate not only the favorable but the unfavorable aspects of those cases.” (CCP §2018.020) With regard to the writings by counsel to the investigator, or the investigator’s notes/reports, these represent the attorney’s thoughts and strategy and are also protected as work product. (CCP §2018.030(a).) For the foregoing reasons, the motion to compel production of the sub-rosa videos and related documents is denied. <u>II. MOTION TO COMPEL INTERROGATORIES</u> This motion arises from the defendant’s response to a supplemental interrogatory wherein the defendant updated its responses to Form Interrogatories 13.1 and 13.2. In the supplemental response to these interrogatories, the defendant identified the sub-rosa videos but did not provide the name, address, and telephone number of the “consultant” who made the videos (13.1(c)) or prepared the report (13.2(c)) Initially, the court viewed the issues in this motion as the same as in the motion to compel production. However, in the supplemental briefing, plaintiff argues that he needs the investigator’s contact information to depose him on two issues (1) what he observed plaintiff to be doing, and (2) the “methods used during the investigation, any potential biases, or inconsistencies in their observations or report.” As to the first issue, the analysis is the same as the motion to compel production. Since what the investigator saw and what he or she filmed is the same thing, a deposition on this issue would be the same as asking the investigator for an oral description of what is depicted in the surveillance video – which would
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	impact the same concerns for work product as turning over the video itself. As to the second issue, the analysis is different. On this issue, plaintiff could ask the investigator questions such as what camera he used, how far away from the subject he was, whether he altered or manipulated the videos, what was the duration of the videos, and what special knowledge, training, and experience he or she has in producing surveillance videos. As to this issue, there remain work product concerns as defense counsel hired and directed the investigator, but these concerns do not outweigh the need for plaintiff to perform this investigation in advance of the trial. Thus, although the question is a close one, the court will grant the motion and require defendant to provide the name and contact information for the investigator. At any subsequent deposition, the plaintiff may not inquire of the investigator as to what the investigator saw or filmed (as these issues are too close to one another to be separated), but may inquire of the investigator as to issues similar to those discussed above. Accordingly, the motion to compel further responses to Form Interrogatories 13.1 and 13.2 is granted. In the plaintiff's Supplemental Brief, he requests that the court conduct an in camera review of the sub rosa videos. This request is DENIED. <u>III. MOTION TO REOPEN DISCOVERY</u> This motion was filed on 3/12/25. However, when the court granted the Ex Parte application to continue the trial on 3/19/25, the court also ordered that "all pretrial deadlines including discovery cut off deadlines are to coincide with the new trial date." Accordingly, the Motion to Reopen Discovery is moot. Therefore, as the Motion to Reopen Discovery is moot, it is denied without prejudice to the Defendants filing further motions to compel discovery after meeting and conferring with opposing counsel. Counsel for defendant is ordered to give notice of these rulings.
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